

Apple iPad 3 rumours

Here is our take on what will comprise the next generation of Apple iPad
<http://bit.ly/q9SQaa>

Amazon, Apple or Barnes & Noble?

Kindle Fire vs iPad 2 vs Nook Color: Specs and features comparison
<http://bit.ly/of2FPx>

Pain pain, go away

What do you do when the warranty runs out but problems continue full steam ahead?

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Karan Luthra, a Delhi-based law professional purchased a notebook from a well known US company. It worked fine for the first few months but he soon noticed unusual sounds coming from the machine, which were duly reported to an authorised service centre. The service centre changed the required software and hardware and claimed to have fixed the problem. Thereafter, the product had to be given to the service centre time and again. The product continued to have recurring problems even as the warranty expired and that's when a whopping amount was quoted for repair – almost equal to the

price of the product. Luthra sent a legal notice to the company, setting out a case of inherent manufacturing defect and he was given a new product by the company despite the warranty period being over.

Warranty period isn't the dead-end of consumer rights. A company cannot shirk away from the responsibility of servicing a product, especially when it is constantly under repair during this period. The warranty period entitles a consumer to get the product repaired free of cost, but it doesn't allow the company to produce a defective product. If a product suffers from chronic problems, the defect is said to be inherent in the product right from the manufacturing stage.

To prove and establish your product to be inherently defective, it's important

to have all the documents and sequence of events in place. Note down all the events, complaint number and index the entire job sheet. Indexing the job sheet means insisting the service centre executives to note down all the deficiencies in the job sheet clearly. Never give or take back any product without any written document and in case you're not satisfied with a particular diagnosis or service, have it mentioned in writing while taking it back from the service centre.

We're not suggesting that you wait to redress problems beyond the warranty period. In fact the consumer should note that towards the end of the warranty period even if the product is working fine, the service executive must be called for overhauling the product. This preventive exercise would help foresee deficiencies. **d**

COMPLAINTS RECEIVED

Laptops

LCD screen of Lenovo laptop is displaying some vertical lines

My Z470 unit has a vertical line on the right-side portion of the LCD after only three days of use. The unit was repaired and after 13 days the vertical line has reoccurred. Also, the after-sales service repair took more than a month.

Contacted By: Ace Eric Salcedo

Answer by Consumermate:

The delay occurred in repairing the product itself amounts to deficiency in services. This is nothing but sheer harassment at the hands of companies who make big claims for their products and have little reality when it comes to supporting their consumers. This seems to be a case of inherent manufacturing defect. It's the company's duty to repair it to your satisfaction without any charges. Give it to the service centre and instruct them about your problems. Any such delay or dissatisfaction in repairing the product

would amount to deficiency in services which is actionable under the Consumer Act prevailing in India. You can write a letter to both, the company and the seller and call upon them to rectify all the problems within a specified time. Please keep a record of all the essential documents which would be crucial to establishing your case in the consumer forum if replacement of the product is required.

Cellphones

New phone has some serious network-related issues

I bought a new Samsung Wave II S8530 15 days back but on my Vodafone network the Internet is not working properly. In the same area and on the same network, other mobile phones such as Nokia E5 work well with no network problem. I have the bill and want to exchange this cell for an Android Samsung cell. The current phone doesn't have a YouTube downloader and the quality of the YouTube videos are not of good enough quality to share with friends. Also pictures sent by

email are of inferior quality and you doubt whether this really is a ₹14,600 mobile. Please respond with the procedure to replace or get my money back.

Contacted By: Hemat Maruti Adavkar

Answer by Consumermate:

We understand your pain and disappointment. Thanks for sharing your inputs and experience about the product which would be beneficial to prospective consumers. If you want to be refunded, you will have to take legal action against the company and reseller from whom you've purchased the product. Please write to them about the loss and ask for damages. You must send a legal notice to them raising all these contentions. In case they don't come up with a solution then you may go ahead with your complaint in the district forum. Please keep a proper record of all the essential documents which would be crucial to establishing your case in the consumer forum. I hope once you write to them, they will come forward to redress your grievance as a priority. **d**